

PASSED

CHICKASAW TRIBAL LEGISLATURE
Permanent Resolution Number 22-018
Amendments to Title 6, Chapter 3 of the Chickasaw Nation Code
(Rights of Majority)

WHEREAS, in accordance with Article VII, Sections 4 and 7 of the Constitution of the Chickasaw Nation, the Chickasaw Tribal Legislature shall enact rules and regulations pertaining to the Chickasaw Nation, and shall make decisions pertaining to the acquisition, leasing, disposition and management of real property, subject to federal law, and

WHEREAS, in accordance with Article XI, Section 1 of the Constitution of the Chickasaw Nation, the Governor shall perform all duties appertaining to the office of Chief Executive. He shall sign official papers on behalf of the Nation, and

WHEREAS, the Chickasaw Tribal Legislature has previously enacted rules and procedures for the District Court of the Chickasaw Nation, and

WHEREAS, the Tribal Legislature desires to further define those rules and procedures.

NOW, THEREFORE, BE IT RESOLVED, that the Chickasaw Tribal Legislature hereby approves and adopts the following language to be codified in the Chickasaw Nation Code as Title 6, Chapter 3, Article I:

“ARTICLE I
RIGHTS OF MAJORITY

SECTION 6-309.1 **PROCEDURE TO CONFER RIGHTS OF MAJORITY;**
PETITION; JURISDICTION AND VENUE; DECREE.

The District Court shall have authority to confer upon minors the rights of majority concerning contracts, and to authorize and empower any person, under the age of eighteen (18) years, to transact business in general, or any business specified, with the same effect as if such act or thing were done by a person above that age; and every act done by a person so authorized shall have the same force and effect in law as if done by persons at the age of majority.

SECTION 6-309.2 **PROCEDURE TO CONFER RIGHTS OF MAJORITY;**
DECREE.

Any minor desiring to obtain the rights of majority for the purposes named in Section 6-309.1 may, by his next friend, file a verified petition in the District Court setting forth the age of the minor petitioner and that said petitioner is then and has been a bona fide resident within the jurisdiction of the Chickasaw Nation for at least one (1) year next before the filing of the petition, and the cause for which the petitioner seeks to obtain the rights of majority. The petition should

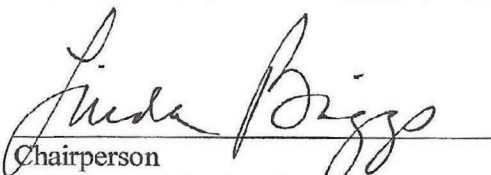
state whether or not the parents of the minor are living, and if living, their names and addresses; whether or not a guardian has been appointed for the minor and, if a guardian has been appointed, the guardian's name and address; who has legal custody of the minor and, if the person having legal custody is not a parent or the guardian, the name and address of the person who has custody. The District Court, being satisfied that the said petitioner is a person of sound mind and able to transact his affairs and that the interests of the petitioner will be thereby promoted, may, in its discretion, order and decree that the petitioner be empowered to exercise the rights of majority.

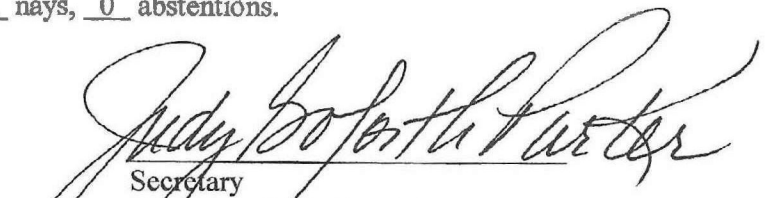
SECTION 6-309.3

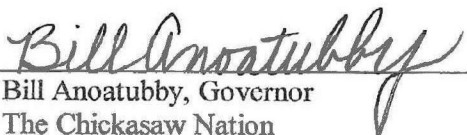
NOTICE OF HEARING; CERTIFIED MAIL AND BY PUBLICATION IN NEWSPAPER.

When the petition defined in Section 6-309.2 is filed, the Court shall fix a day for the hearing thereof. Notice of the hearing and a copy of the petition shall be sent by certified mail, return receipt requested, delivery restricted to addressee only, to the parents of the minor, if living, to the guardian of the minor, if one has been appointed, or to the person who has custody of the minor if such person is other than parent or guardian of the minor, and if both of the minor's parents are dead, the Court may order that notice be sent by certified mail, return receipt requested, delivery restricted to addressee only, to other relatives of the minor; provided, however, that no notice shall be sent to a person who endorses on the petition that notice of the day of the hearing is waived. Notice of the hearing shall also be given by publication in some newspaper printed in the county of the State of Oklahoma where the petitioner resides at least ten (10) days prior to the day set for the hearing. Before the Court may enter an order conferring majority rights in the hearing provided for herein, proof must be presented to the Court at said hearing that notice was given to all persons entitled thereto and that notice was published as provided herein."

Executed in regular session of the Chickasaw Tribal Legislature, meeting at Ada, Oklahoma, on July 15, 2005, by a vote of 13 ayes, 0 nays, 0 abstentions.


Chairperson
Chickasaw Tribal Legislature


Secretary
Chickasaw Tribal Legislature

Concur: 
Bill Anoatubby, Governor
The Chickasaw Nation

Date: JUL 19 2005

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Explanation: This resolution provides rules and procedures for the District Court enabling it to confer rights of majority to persons under eighteen (18) years of age in certain situations and upon certain procedures. The Chickasaw Supreme Court has approved this resolution.

Requested By: Tim Colbert, Chairman
Court Development Ad Hoc Committee

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